

STATE OF NEW YORK

3233--A

2025-2026 Regular Sessions

IN SENATE

January 24, 2025

Introduced by Sens. KAVANAGH, MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Elections -- recommitted to the Committee on Elections in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law, in relation to providing protections against illegal voter purging

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 4-117 of the election law is amended by adding a new subdivision 4 to read as follows:

4. Any person, other than an election officer, who pays for, mails or causes to be mailed, any mail, where such person knows or reasonably should know that such mail: (a) is intended to be delivered to a registered voter or voter registration applicant; and (b) may be used by a challenger, other than an election officer, to challenge the qualifications of a voter, shall file with the state board of elections within two business days of such mailing, a duplicate copy of such mail, a duplicate copy of names and addresses to which such mail was sent, and a completed form prescribed by the state board of elections. Such form shall contain: the full name, residence and business address, and the name of the employer of the person who pays for, mails or causes to be mailed the mailing; the approximate number of pieces of such mail; and a statement certifying the accuracy of such duplicate copies and of the information contained in the complete form. The failure to comply with the provisions of this subdivision shall create a presumption that such mail shall not be used to challenge the qualifications of a voter.

§ 2. Section 8-502 of the election law, as amended by chapter 481 of the laws of 2023, is amended to read as follows:

§ 8-502. Challenges; generally. 1. Before ~~his~~ the voter's vote is cast at an election any person may be challenged as to ~~his~~ the voter's

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

LBD05256-04-6

1 right to vote, in accordance with the provisions of this section, or
2 [~~his~~] the voter's right to vote by early mail, absentee, military,
3 special federal or special presidential ballot. Such challenge may be
4 made by an inspector or clerk, by any duly appointed watcher, or by any
5 registered voter properly in the polling place in accordance with the
6 provisions of this section.

7 2. An inspector shall challenge every person offering to vote, whom
8 [~~he~~] the inspector shall know or suspect is not entitled to vote in the
9 district, and every person whose name appears on the list of persons to
10 be challenged on election day which is furnished by the board of
11 elections.

12 3. Any person, other than an inspector or clerk, may challenge the
13 qualifications of a voter only by completing, executing and delivering
14 to the board of inspectors a challenge affidavit that satisfies the
15 requirements of section 8-503 of this title.

16 § 3. The election law is amended by adding a new section 8-503 to read
17 as follows:

18 § 8-503. Challenge affidavit. 1. The state board of elections shall
19 prescribe the content and form of a challenge affidavit for use at any
20 general, special, town or village election and at any primary election.
21 Such affidavit shall contain the affiant's full name, residence and
22 business address, the name of the affiant's employer, the registration
23 serial number of the person challenged and a recital of the reasons and
24 the facts supporting the affiant's belief that the person challenged
25 lacks one or more of the qualifications for voting prescribed in section
26 5-102 or 5-106 of this chapter and specified in such affidavit. The
27 affidavit shall state if the reason for challenge are based upon the
28 affiant's personal knowledge or upon information received from another
29 person. If the affiant's belief is based upon information furnished by
30 another, the affidavit shall recite the name of the person furnishing
31 the information and the basis for the affiant's information. After the
32 affiant has filed such affidavit, an inspector from each major party
33 shall read to the affiant and request the affiant to sign the following
34 oath which shall be subscribed by such affiant: "I do solemnly swear (or
35 affirm) that I am a qualified voter of the city or county in which this
36 affidavit is signed and that the foregoing statement made by me on
37 (insert day, month and year) is a truthful disclosure of the reasons for
38 my belief that the registered voter therein named is not qualified to
39 vote in the election district in which such voter is now registered." If
40 the affiant shall take and sign such oath, an inspector shall sign the
41 inspector's name as a witness below the affiant's subscription to such
42 oath. An inspector may request state-issued identification to affirm the
43 identity of the challenger. Each challenge affidavit shall only chal-
44 lenge the qualifications of one voter.

45 2. The boards of elections shall make challenge affidavit forms avail-
46 able to all qualified voters.

47 § 4. Subdivision 2 of section 8-504 of the election law, as renumbered
48 by chapter 373 of the laws of 1978, is amended to read as follows:

49 2. (a) If the applicant shall take the preliminary oath, the inspector
50 shall ask the applicant [~~such~~] the following questions as [~~may~~] they
51 pertain to the reason [~~his~~] the applicant's right to vote at such
52 election in such district was challenged[-]:

53 Are you eighteen years of age or older?

54 Are you a citizen of the United States?

1 Have you been a resident of this state and of this county (and the
2 City of New York or village, as applicable) for the past thirty days or
3 more?

4 Do you swear that you have not already voted at this election?

5 (b) If any applicant shall refuse to answer fully any of the questions
6 [~~which may be put to him~~] in this subdivision, [~~he~~] the applicant shall
7 not be permitted to vote.

8 § 5. Section 8-504 of the election law is amended by adding a new
9 subdivision 8 to read as follows:

10 8. Information concerning the citizenship status of individuals, when
11 collected and transmitted pursuant to this section, shall not be
12 retained, used or shared for any other purpose except as may be required
13 by law. A failure to certify that an individual is a citizen of the
14 United States shall be considered an innocent error. Such person failing
15 to certify United States citizenship shall not be considered as attempt-
16 ing to register to vote.

17 § 6. Paragraphs (b) and (e) of subdivision 2 of section 8-508 of the
18 election law, as amended by section 11 of part XX of chapter 55 of the
19 laws of 2019, are amended to read as follows:

20 (b) The second section of such report shall be reserved for the board
21 of inspectors to enter the name, address and registration serial number
22 of each person who is challenged at the time of voting together with the
23 reason for the challenge, the name and address of the person challenging
24 the qualifications of such voter, if such person challenging the quali-
25 fications is not an inspector or clerk, and the words "Permitted to
26 Vote" or "Refused to take oath". If no voters are challenged, the board
27 of inspectors shall enter the words "No Challenges" across the space
28 reserved for such names. In lieu of preparing section two of the chal-
29 lenge report, the board of elections may provide, next to the name of
30 each voter in the computer generated registration list, a place for the
31 inspectors of election to record the information required to be entered
32 in such section two, or provide elsewhere in such registration list, a
33 place for the inspectors of election to enter such information.

34 (e) At the foot of such report or at the end of any such computer
35 generated registration list, if applicable, shall be a certificate that
36 such report or list contains the names of all persons who were chal-
37 lenged on the day of election, [~~and~~] the reason for such challenge and
38 the names and addresses of all challengers who are not inspectors or
39 clerks that each voter so reported as having been challenged took the
40 oaths as required, that such report or list contains the names of all
41 voters to whom such board gave or allowed assistance and lists the
42 nature of the disability which required such assistance to be given and
43 the names and family relationship, if any, to the voter of the persons
44 by whom such assistance was rendered; that each such assisted voter
45 informed such board under oath that [~~he~~] the voter required such assist-
46 ance and that each person rendering such assistance took the required
47 oath; that such report or list contains the names of all voters who were
48 permitted to vote although their registration poll records were missing;
49 that the entries made by such board are a true and accurate record of
50 its proceedings with respect to the persons named in such report or
51 list.

52 § 7. Subdivision 3 of section 8-510 of the election law, as amended by
53 section 12 of part XX of chapter 55 of the laws of 2019, is amended to
54 read as follows:

55 3. The inspectors shall place such completed report, each challenge
56 affidavit and each court order, if any, directing that a person be

1 permitted to vote, in the secure container provided by the county board
2 of elections for such ledger of registration records or computer gener-
3 ated registration lists and then shall close and seal each ledger of
4 registration records or computer generated registration lists, lock such
5 ledger in the carrying case furnished for that purpose and enclose the
6 keys in a sealed package or seal such list in the envelope provided for
7 that purpose.

8 § 8. Subdivisions 1 and 2 of section 17-108 of the election law, as
9 amended by chapter 373 of the laws of 1978, are amended to read as
10 follows:

11 1. Any person who wilfully loses, alters, destroys or mutilates the
12 list of voters or registration poll ledgers, a challenge affidavit, or a
13 challenge report in any election district, or a certified copy thereof,
14 is guilty of a misdemeanor.

15 2. An applicant for registration who shall make, incorporate or cause
16 to be incorporated a material false statement in an application for
17 registration, or in any challenge or other affidavit required for or
18 made or filed in connection with registration or voting, and any person
19 who knowingly takes a false oath before a board of inspectors of
20 election, and any person who makes a material false statement in a
21 medical certificate, a challenge affidavit or an affidavit filed in
22 connection with an application for registration, is guilty of a misde-
23 meanor.

24 § 9. This act shall take effect on the thirtieth day after it shall
25 have become a law.